

Risk averse

Fee rule	Meritorious-P shortfall	Nonliable-D burden	Liable-D excess burden	Gross outcome error	Total expenditures
American	0.236	0.242	0.003	0.433	0.090
Trial Fee-Shifting	0.241	0.220	0.004	0.421	0.084
Complete Fee-Shifting	0.232	0.239	0.004	0.432	0.083